



MINUTES

Business Meeting of the Niagara Falls Water Board April 28, 2025 at 5:00 p.m.

Water Treatment Plant Conference Room
5815 Buffalo Avenue, Niagara Falls New York 14304

Meeting could be attended in person or via videoconference.

1. Preliminary Matters

- a. Call To Order
- b. Pledge of Allegiance to the Flag of the United States of America
- c. Attendance:

Cole Present, Dean Present, Kimble Present (Zoom), Larkin Present (Zoom),
Sirianni Present.

- d. Presentations (None Scheduled)
- e. Public Comments (All speakers must register with the meeting clerk prior to roll call and are limited to three minutes per person – total time for all speakers may not exceed one hour).

Jeff Tarapczynski spoke on behalf of his mother, a tenant at 21 C Street. They recently discovered that the water passing through the meter there also went through a meter in the adjoining unit, resulting in a double charge. The situation has been corrected, but they request an adjustment related to this. Mr. Costello or Mr. Smith will contact them with a possible resolution for the Board's approval to follow.

Vishwa Jeyacharnder spoke as a representative of the owner of 427 3rd Street, a restaurant where a pipe burst during the winter when the business was closed, resulting in a high water bill. The property was being checked monthly. Mr. Smith will contact him to discuss further.

A discussion on leak detection and automated meter infrastructure ensued, Chairman Sirianni noted that such a system is expensive but would provide notice of leaks. Mr. Costello noted that he is working to obtain a quote from our meter vendor, the Board previously explored this but advances in technology may make it more cost effective.

f. Letters and Communications

g. Prior Meeting Minutes

i. Draft March 24, 2025 Annual Business Meeting Minutes

Motion by Board Member Dean and seconded by Board Member Cole to accept the March 24, 2025 annual business meeting minutes.

Cole __Y__ Dean __Y__ Kimble __Y__ Larkin __Y__ Sirianni __Y__

Motion carried, 5-0.

ii. Draft March 31, 2025 Special Meeting Minutes

Motion by Board Member Dean and seconded by Board Member Larkin to accept the March 31, 2025 special meeting minutes.

Cole __Y__ Dean __Y__ Kimble __Y__ Larkin __Y__ Sirianni __Y__

Motion carried, 5-0.

2. Executive Director & General Counsel – Sean Costello

a. Personnel Items

i. April 28, 2025 Personnel Actions

- 1. Job Specification – Industrial Monitoring Coordinator**
- 2. Job Specification – Compliance Officer/Industrial Waste Inspector**

Motion by Board Member Dean and seconded by Board Member Cole to approve items 1 through 4 on the April 28, 2025 Personnel Actions.

Cole __Y__ Dean __Y__ Kimble __Y__ Larkin __Y__ Sirianni __Y__

Motion carried, 5-0.

3. Engineering – Douglas Williamson

Mr. Williamson noted that the Town of Niagara spring flow monitoring period showed lower flows than last year. The second monitoring period will be in August. The reasons for

scattered portions of the Town's sewers to flow to the NFWB system, the rationale for two flow monitoring periods, and why there are not permanent meters were discussed. Further, Mr. Costello provided a brief update on the Town of Niagara agreement.

There is a meeting later in the week to discuss potential replacement of sections of the 20th Street water main where it crosses under CSX railroad tracks. There also is a project kickoff meeting with AECOM on Thursday for repairs to the Calumet Avenue sewer. The final annually required report for the 2024 operation of the WWTP has been completed and filed.

4. Information Technology (IT) –Jonathan Joyce

Mr. Joyce introduced recently hired Systems Engineer Elton Mensah-Selby. He discussed recent action to promptly address an issue identified in our routine cybersecurity scanning by CISA. He is finalizing details for a new agreement with Spectrum to reduce our internet service costs. The IT Department has a strategy for upgrading all operating systems to Windows 11 before Windows 10 support ends, and we also are updating to Server 2024.

5. Finance – Michael Smith

- a. 2024 Audit Status Update**
- b. Bank Account Balance Report**
- c. Investment Account Report**
- d. Wilmington Trust Account Report**

Mr. Smith is still working to get the 2024 audit completed. He has all information needed by the auditors and plans to send it this week. Then he will contact the auditors to find out when they can complete their on-site work.

An analysis of the bank account balance report shows that the balances are fairly consistent with the same time last year. The Wilmington Trust capital account balances have declined with capital payments.

Mr. Smith then discussed an issue with our current online payment portal accepting payments from “checkless” checking accounts. A notice now has been placed on the website to warn not to use these accounts. Board Member Larkin asked if late fees are being refunded for customers whose payments using checkless accounts fail, Mr. Smith answered affirmatively for the first failed payment. In the meantime, the returned checks are adding a lot of work for Mr. Smith. A brief further discussion ensued on upgrading the online payment system; staff recently previewed a system they believes is superior. Mr. Smith further noted that with news that service terminations for non-payment are to be renewed, there have been a large volume of customer requests for payment agreements.

6. Questions Regarding March 2025 Operations and Maintenance Report

7. Resolutions

2025-04-001 – AWARD BID FOR WASTEWATER TREATMENT PLANT SLUDGE HAULING AND DISPOSAL

a. 2025-04-03 - CPL Award Recommendation and Bid Tabulation

Motion by Board Member Dean and seconded by Board Member Cole to approve.

Cole __Y__ Dean __Y__ Kimble __Y__ Larkin __Y__ Sirianni __Y__

Motion carried, 5-0.

2025-04-002 – PROCUREMENT OF PARTS TO REBUILD WWTP BAR SCREEN CHAINS AND RAKES

a. 2025-03-25 - Shrier-Martin Quote for Headworks Mahr Bar Screen Chains, Links, and Rakes

Motion by Board Member Kimble and seconded by Board Member Dean to approve.

Cole __Y__ Dean __Y__ Kimble __Y__ Larkin __Y__ Sirianni __Y__

Motion carried, 5-0.

2025-04-003 – PROCUREMENT OF REPLACEMENT WWTP CARBON FILTER BED TROUGHS

a. 2025-03-28 - Warminster Fiberglass Quote for Carbon Filter Bed Troughs

Motion by Board Member Kimble and seconded by Board Member Dean to approve.

Cole __Y__ Dean __Y__ Kimble __Y__ Larkin __Y__ Sirianni __Y__

Motion carried, 5-0.

2025-04-004 – AUTHORIZING BILL ADJUSTMENTS RECEIVED AFTER DEADLINE

Motion by Board Member Dean and seconded by Board Member Larkin to approve.

The Board discussed these adjustments. Information on exactly how late the adjustment requests were received as not immediately at hand. Adjustments are limited to one every two years and there are other criteria for eligibility. These adjustments met all requirements except for submission within 30 days of the bill date.

Cole __Y__ Dean __Y__ Kimble __Y__ Larkin __Y__ Sirianni __Y__

Motion carried, 5-0.

W-2025-04-005 – EVALUATION PLAN FOR INCOMING EXECUTIVE STAFF

WHEREAS, the Niagara Falls Water Board (“Water Board”) directly hires professional staff at the Director and Deputy Director levels, with these executive staff members being charged with performing duties important to the operation of the Water Board’s System; and

WHEREAS, the professional staff receives general direction from and works directly with the Executive Director, and there is not presently a procedure by which the Board receives routine updates on the suitability and performance of its executive staff hires during the early months of their employment; and

WHEREAS, the Water Board desires to implement an evaluation plan to systemically assess the performance of newly hired Director and Deputy Director level staff in order to provide constructive feedback and to make informed decisions regarding continued employment;

NOW THEREFORE BE IT

RESOLVED, that new executive staff members are to email to the Members of the Board an action plan for their next 30, 60, 90, and 120 days by the end of their fifth business day of employment with the Water Board; and

IT IS FURTHER RESOLVED, that the Executive Director is to send the Members of the Board an informal update on newly-hired executive staff members after their first week of service, and to complete written evaluations of new executive staff members at 30, 60, 90, and 120 days of employment and a copy is to be provided to the Members of the Water Board via email upon completion; and

IT IS FURTHER RESOLVED, that the new executive staff member evaluations are to include an interview of the executive staff member being reviewed,

objective, measurable metrics, a numerical scoring system for the evaluation, and a discussion of the review results with the executive staff member who shall be afforded an opportunity to respond, with significant comments by the executive staff member to be included in the Executive Director's email to the Members of the Water Board relative to that evaluation.

Motion by Board Member Larkin and seconded by Board Member Kimble to waive the agenda deadline policy in order to consider this Resolution.

Cole __Y__ Dean __N__ Kimble __Y__ Larkin __Y__ Sirianni __N__

Motion carried, 3-2.

Motion by Board Member Kimble and seconded by Board Member Larkin to approve the Resolution.

Board Member Larkin explained that the resolution was based on an emailed request from Board Member Kimble to Executive Director Costello to conduct aggressive evaluations of new directors for the first 90 to 120 days. The purpose is to make sure new hires have goals, meet goals, and are fit to do the job. She believes strongly that the Board should have 30, 60, and 90 day evaluations but is open to Board Member Cole's suggestion that the evaluations should be at 30 and 90 days, with a 90 day probationary period. She feels that Board Member Kimble gave evaluations as a directive to Mr. Costello and these should have been done without any question but now they are presenting a resolution.

Board Member Dean stated that he supports a performance management program, especially for executives and directors. He appreciates the effort but has questions about how it would be developed and implemented, and asks Board Members Larkin and Kimble if they would be amendable to tabling the resolution to the next work session for more conversation.

Chairman Sirianni agrees that an evaluation is needed and healthy for the organization but to put it in place without dialogue among the Board and with the Executive Director is rushed, and the Board should work together to develop it.

Board Member Kimble stated that she sent her email to Mr. Costello on evaluations three to four weeks ago.

Chairman Sirianni stated that when he saw the request, he asked that it be paused.

Board Member Larkin stated she did not feel the evaluation resolution should be paused because a new employee is starting and Mr. Costello should have in his head or on paper expectations for that person to accomplish within the first 30, 60, and 90 days.

Chairman Sirianni stated that the Board Members pushing the resolution without delay have the most seniority on the Board and there has been no policy for 12 to 20 years, but they now want an evaluation plan because those Board Members are unhappy with the employee

selected, because they feel the Board should have hired a woman. He would like Mr. Costello to work with the new HR Director to produce a policy for the next work session. He feels the new hire is being singled out because he is not the candidate preferred by the Board Members supporting the resolution.

Board Member Cole agrees with Chairman Sirianni and Board Member Dean that this topic would be better for a longer discussion but agrees with Board Members Kimble and Larkin that evaluations are a necessity. He believes a 90-day probation, and 30- and 90-day reviews, is fair. He agrees it would be best to table the resolution and discuss and decide on something all five Board members agree upon, but agrees with Board Members Kimble and Larkin on the framework.

Board Member Kimble stated that she is ready to move the resolution forward, and that with respect to the evaluation of the new HR Director that is for the Executive Director to do, not for the new HR Director to be involved with preparing.

Board Member Dean made a motion, seconded by Chairman Sirianni, to amend Board Member Kimble's motion to approve to instead table the resolution until the next work session.

Cole __Abstain__ Dean __Y__ Kimble __N__ Larkin __N__ Sirianni __Y__

Motion to amend the motion to approve in order to table the resolution failed, 2-2, with 1 abstention.

Board Member Larkin made a motion to amend the resolution to state that there is a 90-day probationary period and evaluations at 30 and 90 days.

Chairman Sirianni questioned where the discussion to remove the evaluation at five days that is in the printed copy of the resolution took place. Board Member Cole stated that Board Members Larkin and Kimble had agreed to compromise on the evaluations and that he was asked as he walked into the building if he would accept this. Board Member Cole agrees that the resolution should be tabled but since this is so important to Board Members Larkin and Kimble will agree with the compromise from their requested 5, 30, 60, 90, and 120 day evaluations.

Board Member Dean asks for this to be tabled because he would like to see a better policy from the Board. This is just targeting new executive staff members and not all executive staff members. He feels it should be more fleshed out what a performance review program will look like.

Board Member Larkin noted that there were annual evaluations for executive staff and performance improvement plans. She feels that the members of the Board opposing the resolution do not want someone evaluated.

Board Member Larkin stated that Chairman Sirianni had interrupted while she was speaking. Chairman Sirianni stated that he thought she had finished speaking and that Board Members

Larkin and Kimble should attend meetings in person. Board Member Kimble stated that she does not attend meetings in person because of COVID. She has had family members die from COVID and it remains a threat, and she wears masks and limits going out in public. Chairman Sirianni acknowledged that he understood Board Member Kimble's health reasons and that she has come in person when requested but stated that Board Member Larkin does not attend because she thinks someone will beat her up which he characterized as ridiculous and embarrassing. Board Member Larkin stated that she does not want to be in the same room as Board Member Sirianni after the way she was treated at the October 28 Board Meeting; prior then she had been attending every meeting in person until he arrived on the Board but will not be in the same room as someone who she feels has been abusive and vile toward her. Chairman Sirianni remarked on reaching out to Senator Ortt to have her removed, and Board Member Larkin stated this would not be something Chairman Sirianni was going to do.

There ensued a discussion on the propriety of an oral amendment to the resolution; the possibility of which was confirmed. Chairman Sirianni noted that the printed resolution had been emailed to the Board at around 2:00 or 2:30 p.m. that afternoon and he had not had time to review it.

Board Member Cole stated that he did not see the resolution as focusing on one person though he understood that most directors are outside the window of the resolution. He understands there are annual reviews for these directors. The resolution will, however, apply to all new director level staff. Mr. Costello will review the HR Director, but the HR Director will be responsible for completing evaluations of other staff with Mr. Costello to communicate the HR Director's reviews to the Board. He feels the compromise offered by Board Members Larkin and Kimble is fair.

Chairman Sirianni wished to make clear that the compromise was between Board Members Larkin, Kimble, and Cole, not his compromise.

There ensued a conversation on the details of the amendment to the resolution.

Board Member Larkin stated that the matter should never have been put to a resolution. Evaluations were a directive from Board Member Kimble to Mr. Costello that should not have been questioned. Board Member Dean disagreed with the premise that any Board Member can make a request like that to the Executive Director, because it must go through the Governance Committee to create such a policy.

Board Member Dean stated that a 90-day probationary period is not needed for an at-will employee because they essentially remain at will for their whole employment. Board Member Cole stated he has experience with evaluation periods of 90 days, and Board Member Larkin stated that such a period is very common.

Board Member Dean asked that the requirement that the new executive submit an action plan for the first 90 days be moved to a deadline more than five days after starting, because they still are in the onboarding process.

It was clarified that the new executive staff member does not have to create their action plan without input from others.

Board Member Cole understands it is up to the discretion of the executive how long the action plan will be, one page or 100 pages, but agrees with Board Member Dean that the individual should have more than five days to prepare it.

Chairman Sirianni feels the first few days for a new employee are spent touring the facility.

Further discussion clarified that the amendment on the table reduced the requirement of the action plan to 30 and 90 days, instead of 30, 60, 90, and 120 days.

Board Member Larkin is willing to agree to give the new executive 10 working days to submit their action plan. Board Member Cole agrees this is enough time to prepare one paragraph on each timeframe.

Chairman Sirianni feels 10 working days is not enough for a new employee who is learning a new system, and it is setting the employee up to fail, which is what he thinks is intended here.

Board Member Kimble stated she has had to come up with a similar action plan within five days for a job that was just created. Further, she stated that the new executive is supposed to be an expert in personnel and there are matters handled by that function in every organization, so it does not require reinventing the wheel or developing a plan for a job that he does not know anything about.

Chairman Sirianni stated his worst expectations had been proven and that he did not know what job Board Member Kimble had done, but he was confident that the human resources function at the Water Board with payroll, a hundred employees, and two different divisions has a lot more to do and learn than in her job, and that he did not mean that in a disrespectful way.

Board Member Kimble stated that she has been responsible for thousands of employees, six collective bargaining units, and nine different units, and that it is sexist and racist for Chairman Sirianni to assume the work she has done does not meet up to this person's standard, and that Chairman Sirianni had crossed a line saying that.

Chairman Sirianni stated he was not knocking Board Member Kimble's job but comparing it to human resources. Board Member Kimble stated he cannot compare the jobs she has done in her life because he does not know them.

Board Member Kimble described human resources responsibilities and stated if the new executive cannot prepare an action plan in 10 days it is a problem. Chairman Sirianni stated he is confident that the new executive will prepare an action plan, but that 10 days is too short and that they are setting him up to fail so they can bring down the hammer, and that he feels Board Member Kimble's public statements indicate this. Board Member Kimble replied that she had stated the truth, that Harvard Business Review research supported a more diverse

workforce and that there had been two other people under consideration for Director of Administrative Services with more education and more experience in human resources, the Board was looking for someone in human resources not operations.

Chairman Sirianni stated that he disagreed and that the Board majority had disagreed with Board Member Kimble, and Board Member Kimble stated that did not make the majority of the Board right.

There ensued a discussion on evaluation forms, and having a point scoring system as well as having statements of opinion. Mr. Costello envisions a numerical rating, with comments, and an opportunity for the individual to discuss before the document is finalized.

Board Member Kimble stated that Chairman Sirianni interrupted her while speaking and believes he does not have respect for Board members and the women Board members because he tries to run over them and shout them down, and now she feels she must get more aggressive so her point can be heard. Chairman Sirianni stated he sometimes thinks the Board Members on video are finished because there is a hesitation.

The following resolution as amended ultimately was presented:

NIAGARA FALLS WATER BOARD RESOLUTION # W-2025-04-005

EVALUATION PLAN FOR INCOMING EXECUTIVE STAFF

WHEREAS, the Niagara Falls Water Board (“Water Board”) directly hires professional staff at the Director and Deputy Director levels, with these executive staff members being charged with performing duties important to the operation of the Water Board’s System; and

WHEREAS, the professional staff receives general direction from and works directly with the Executive Director, and there is not presently a procedure by which the Board receives routine updates on the suitability and performance of its executive staff hires during the early months of their employment; and

WHEREAS, the Water Board desires to implement an evaluation plan to systemically assess the performance of newly hired Director and Deputy Director level staff in order to provide constructive feedback and to make informed decisions regarding continued employment;

NOW THEREFORE BE IT

RESOLVED, that the Executive Director is to email to the Members of the Board new directors’ action plan for their next 30 and 90 days by the end of the new director’s tenth business day of employment with the Water Board; and

IT IS FURTHER RESOLVED, that the Executive Director or Director of Administrative Services, if not the Director being evaluated, is to send the Members of the Board via email written evaluations of new executive staff members at 30 and 90 days of employment and the first 90 days of a new executive staff member's employment shall be considered a probationary period; and

IT IS FURTHER RESOLVED, that the new executive staff member evaluations are to include an interview of by the Executive Director of the executive staff member being reviewed, objective, measurable metrics, a numerical scoring system for the evaluation, and a discussion of the review results with the executive staff member who shall be afforded an opportunity to respond, with significant comments by the executive staff member to be included in the email to the Members of the Water Board relative to that evaluation.

Motion to approve Resolution W-2025-04-005 as amended by Board Member Larkin and seconded by Board Member Kimble.

Cole __Y__ Dean __N__ Kimble __Y__ Larkin __Y__ Sirianni __N__

Motion carried, 3-2.

8. Unfinished/Old Business

9. New Business & Additional Items for Discussion

Board Member Cole discussed the recent recreational hockey game, where a team made up of Water Board employees (not an official work sponsored team) played the Niagara Falls Police Department and won 9-3.

10. Executive Session (if needed)

11. Adjournment of Meeting

Motion by Board Member Dean and seconded by Board Member Larkin to adjourn the meeting at 7:41 p.m.

Cole __Y__ Dean __Y__ Kimble __Y__ Larkin __Y__ Sirianni __Y__

Motion carried, 5-0.